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Dept. F43

Hearing Date: 08-12-26

Case # 26CHCV01916, Elkington,
et al. v. Sylmar Plaza Shopping Center, Inc., et al.

Trial Date: None set.

DEMURRER

MOVING PARTY: Defendant Orchard Neighborhood Market, Inc.

RESPONDING PARTIES: Plaintiffs Nicholas Elkington and Mary Gallegos

RELIEF REQUESTED

Order sustaining demurrer to the complaint's
causes of action due to defect and misjoinder of parties.

RULING: Demurrer sustained in part as to the Second
Cause of Action with leave to amend. Demurrer
is overruled as to the First and Third Causes of Action.

SUMMARY OF ACTION

On May 12, 2026, plaintiffs Nicholas

Elkington and Mary Gallegos (Plaintiffs) filed this premises liability action against defendants Sylmar Plaza Shopping Center, Inc. (Sylmar Plaza), Mushmel Properties Corporation (Mushmel Properties), Lucky Seven Dragons, Inc. (Protective Shield), Orchard's Neighborhood Market, Inc. (Orchard), Juan Cartagena Landaverde, and John Doe. Plaintiffs assert negligence and negligent hiring, supervision, and retention. Plaintiffs assert they suffered injuries due to the actions of security guards contracted to provide security-related services at the Sylmar Plaza shopping mall located at 13195 Gladstone Avenue, Sylmar CA 91342 (the Premises).

On July 6, 2026, defendant Orchard's Neighborhood Market, Inc. filed the instant demurrer to the Complaint, asserting misjoinder of parties. On July 30, 2026, Plaintiffs filed an opposition, and Orchard replied on August 5, 2026.

MEET AND CONFER

Before filing a demurrer, the parties must meet and confer "in person, by telephone, or by video conference." (Code Civ. Proc., § 430.41, subd. (a).) The moving party must file and serve a meet and confer declaration stating either: (1) the means by which the parties met and conferred, that the parties did not reach an agreement resolving the issues raised in the demurrer; or (2) that the party who filed the pleading subject to the demurrer failed to respond to the meet and confer request or failed to meet and confer in good faith. (Code Civ. Proc., §§ 430.41, subd. (a)(3).)

Counsel met and conferred telephonically on July 1, 2026, but have not come to an agreement concerning the Complaint's allegations. (Declaration of Mark P. Lascola ¶¶ 6-7.) Therefore, the "meet and confer" requirement is met.

THE COMPLAINT'S ALLEGATIONS

Plaintiffs allege Sylmar Plaza and Mushmel Properties own and manage the Premises. (Compl. ¶ 5.) Defendant Orchard

is a commercial tenant that owns and operates a grocery store on the Premises. (Id. ¶ 7.) Defendant Doe 1 also a commercial tenant who owns and operates a store on the Premises.

(Id. ¶ 8.) Mushmel

Properties retained Protective Shield to perform security-related services at the Premises. (Compl. ¶ 16.) Protective Shield employed security guards to perform the security-related services, including defendants Landaverde and John Doe. (Id.) Defendant Landaverde is contracted to provide security-related services for Mushmel Properties, Orchard's Neighborhood, and Doe 1. (Id. ¶ 9.) Defendant John Doe is also contracted to provide security-related services for Mushmel Properties. (Id. ¶ 10.) Mushmel Properties and Protective Shield had prior knowledge that John Doe and Landaverde did not have active California Bureau of Security and Investigative Services security guard licenses. (Id. ¶ 17.) Mushmel Properties had prior knowledge that Protective Shield had a history of employing unlicensed security guards and were cited and fined for this conduct. (Id.)

Plaintiffs are disabled individuals who reside in a disabled adult care facility located near the Premises. (Compl. ¶¶ 5, 15.) Plaintiff Gallegos is over 60 years old and is afflicted with a physical condition that significantly limits her mobility. (Id. ¶ 15.)

On May 8, 2025, plaintiff Elkington was a patron of Doe 1's business. (Compl. ¶ 19.) After completing a purchase and exiting Doe 1's storefront, plaintiff Elkington was standing and walking in the parking lot of the Premises when he was aggressively approached by security guard defendant John Doe who demanded that Elkington immediately exit the Premises. John Doe then chased, pepper sprayed, and tased plaintiff Elkington without any provocation or justification, and caused plaintiff Elkington to suffer physical and psychological injuries (including severe emotional distress) and financial damages. Plaintiff Elkington never presented any danger to defendant John Doe nor to any other persons present at the Premises. John Doe's conduct was committed in the course and scope of his security guard-related duties at the Premises.

On October 8, 2025, plaintiff Gallegos was a patron of defendant Orchard's grocery store on the Premises. (Compl. ¶ 20.) After exiting the storefront and while

walking towards the exit of the Premises to return to her home, plaintiff Gallegos was aggressively confronted by security guard defendant Landaverde who demanded that Gallegos exit the Premises more quickly. Even though plaintiff Gallegos presented no danger to defendant Landaverde or other persons at the Premises, defendant Landaverde pepper sprayed plaintiff Gallegos without any provocation or justification. Defendant Landaverde's conduct was committed in the course and scope of his security guard-related duties at the Premises and caused plaintiff Gallegos's physical and psychological injuries (including severe emotional distress) and financial damages.

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SUMMARY OF ARGUMENTS

Defendant Orchard contends the Complaint misjoins the plaintiff because their allegations against several distinct defendants do not arise out of the same nexus of law and facts and their injuries supposedly occurred five months apart at entirely different stores. (Demurrer at p. 2:5-12.) Thus, the first and second causes of action should have been filed as two separate actions.

The Third Cause of Action fails because the facts do not arise from the same transaction or series of transactions and no facts are alleged showing any relation between the incidents other than where they occurred. (Citing *Coleman v. Twin Coast Newspaper* (1959) 175 Cal.App.2d 650, 653; *Moe v. Anderson* (2012) 207 Cal.App.4th 826.)

In opposition, Plaintiffs contend their claims arise from the same series of transactions and share common questions of law and fact pursuant to Code of Civil Procedure section 378. The series of transactions exists because a single security company was retained by a single property owner to guard the Premises and those guards caused each disabled plaintiff's bodily harm on the Premises. Differences in time and place do not defeat joinder where a common course of conduct links the claims. (Opposition at pp. 5:24-7:23.) The *Moe* case does not support the demurrer because there the Court of Appeal confirmed a common defendant's negligent hiring and supervision can supply the serious of transactions that links otherwise separate incidents. Here, there are shared defendants, location, and conduct. *Coleman* is distinguishable because here there is a common security company and property owner who deployed the security guards at the same premises, the community of interest that was

lacking in *Coleman. Smith v. Superior*

Court (2026) is on point because there the Court of Appeal found that allegations a single employer engaged in a “pattern and practice” of ignoring misconduct that exposed each of them to harm at different times and places was sufficient to justify joinder based on a commonality of liability.

ANALYSIS

A. Demurrer

A party may respond to a pleading against it by demurrer based on one or more of eight enumerated grounds, including “a defect or misjoinder of parties.” (Code Civ. Proc., § 430.10, subd. (d).) The grounds for demurring must be apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

The purpose of a demurrer is to challenge the sufficiency of a pleading “by raising questions of law.” (*Postley v. Harvey* (1984) 153 Cal.App.3d 280, 286.) “In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties.” (Code Civ. Proc., § 452.) The court “‘treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law[.]’” (*Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (*Picton v. Anderson Union High School Dist.* (1996) 50 Cal.App.4th 726, 733.)

If a demurrer is sustained and the pleading is subsequently amended, the demurring party cannot file a subsequent demurrer on grounds that could have been raised in the previous demurrer. (Code Civ. Proc., § 430.41, subd. (b).)

B. Misjoinder of Parties

The plaintiff must join to the case all parties with a material interest in the subject of the case. (Code Civ. Proc., § 389, subd. (a); *Bianka M. v. Superior Court* (2018) 5 Cal.5th 1004,

1018-1019.) A party has a material interest if: (1) in the person's absence complete relief cannot be accorded among those already parties to the action; or (2) a judgment rendered in the person's absence might (a) prejudice a person's ability to protect their interest in later litigation or (b) leave any of the parties before the court exposed to a risk of additional liability or inconsistent obligations. (Code Civ. Proc., § 389, subd. (a); *Morrison v. Rogers* (2013) 220 Cal.App.4th 438, 460-464; *Olszewski v. Scripps Health* (2003) 30 Cal.4th 798, 808-809.)

California Code of Civil Procedure § 378(a) provides that all persons may join in one action as plaintiffs if they meet either of two conditions: (1) they assert any right to relief jointly, severally, or in the alternative, in respect of or arising out of the same transaction, occurrence, or series of transactions or occurrences, and if any question of law or fact common to all these persons will arise in the action; or (2) they have a claim, right, or interest adverse to the defendant in the property or controversy which is the subject of the action. (Code Civ. Proc., § 378, subd. (a)(1)-(2).)

The first condition requires plaintiff to establish (1) a transactional nexus and (2) at least one common legal or factual question. However, "[i]t is not necessary that each plaintiff be interested as to every cause of action or as to all relief prayed for." (Code Civ. Proc., § 378, subd. (b).)

Demurrer for misjoinder lies only where the complaint fails to establish a (1) "sufficient unity of interest" or (2) a common question of law or facts as to each defendant. (Code Civ. Proc., §§ 378, subd. (a), 430.10, subd. (d).) However, a demurrer for misjoinder does not lie to challenge allegations that plaintiff is uncertain which defendant caused his or her injuries. (*Landau v. Salam* (1971) 4 Cal.3d 901, 908; *Geraci v. United Services Auto. Ass'n* (1987) 188 Cal.App.3d 1245, 1252.) Further, a demurrer for misjoinder lacks merit if defendant cannot show that it suffered prejudice or that its interests are impaired. (*Anaya v. Superior Court* (1984) 160 Cal.App.3d 228, 231 fn. 1; see also *Royal Surplus Lines Ins. Co., Inc. v. Ranger Ins. Co.* (2002) 100 Cal.App.4th 193, 198.) The joinder statutes should be liberally construed unless expressly forbidden. (*Smith v. Superior Court* (2026) 121 Cal.App.5th 607, 619.)

The Court of Appeal has drawn a critical distinction between claims against individuals and claims against employers or entities whose common policies or practices give rise to multiple incidents.

In *Moe v. Anderson* (2012), two patients sued a physician who had sexually assaulted them in two separate incidents, in May of 2009 and between July and September of 2009. (207 Cal.App.4th 826, 827.) The Court of Appeal held that the patients' claims against the physician individually were not properly joined because the assaults were separate and distinct occurrences during separate and distinct time periods. (Id. at pp. 832-835 [distinguishing *Coleman v. Twin Coast Newspaper, Inc.* (1959) 175 Cal.App.2d 650, 653-654, fn. 4 and noting *Coleman* was decided based on a prior version of Section 378].) Furthermore, nothing in the complaint indicated a related series of transactions. As such, the Court of Appeal rejected the theory that the physician's alleged status as a serial offender was sufficient to establish a series of transactions. (Id. at p. 834.)

However, the court reached a different conclusion as to the physician's employer, whom the plaintiffs also sued. The Court of Appeal held the two patients' negligent hiring and supervision claims against the employer were properly joined, because those claims arose from the same series of transactions (the employer's hiring and supervision decisions) which exposed each plaintiff to the physician's predatory conduct. (*Moe v. Anderson*, supra, 207 Cal.App.4th at p. 835.) The court reasoned that the same evidence regarding the employer's hiring and supervision would need to be adduced in separate lawsuits if joinder was not allowed. (Id. at pp. 835-836; see also *Anaya v. Superior Court* (1984) 160 Cal.App.3d 228, 230-231 [emphasizing temporal differences do not defeat joinder when the underlying series of transactions is common to all plaintiffs].)

In *Smith v. Superior Court* (2026), the Court of Appeal held that hundreds of former Tesla employees who alleged racial harassment at a single factory were properly joined even though the harassment occurred at different times and in different locations within the factory. (121 Cal.App.5th 607, 620-624.) The court reasoned that plaintiffs' allegations indicated a common policy or practice, Tesla's systematic and consistent failure to address racist conduct at the factory. (Id. at pp. 620-621.) The court held these allegations were sufficient to establish the employees' claims arose from the same series of

transactions or occurrences and that the temporal and geographic differences in the same locations did not defeat joinder.

Here, each plaintiff's negligence claim arose from similar security guard conduct at the same geographical location but at different times, which resulted in each plaintiff suffering injuries. Moreover, each plaintiff is disabled. (Compl. ¶ 5.) Plaintiff Gallegos alleges negligence against defendants Orchard, Sylmar Plaza, Mushmel Properties, Protective Shield, and security guard Landaverde concerning the October 8, 2025, incident. (Id. ¶¶ 20, 25-28.)

Plaintiff Elkington alleges a separate negligence claim against defendants Sylmar Plaza, Mushmel Properties, Protective Shield, and security guard John Doe concerning the May 8, 2025, incident. (Id. ¶¶ 19, 21-24.) Plaintiffs allege similar conduct by Protective Shield's security guards which led to their injuries: After visiting a store run by Mushmel Properties' commercial tenant on the Premises and while attempting to exit the Premises, Protective Shield's security guard aggressively accosted each Plaintiff, pepper-sprayed each Plaintiff, and chased or demanded the Plaintiffs leave the Premises more quickly. (Id. ¶¶ 19-20, 24, 28.) Additionally, the security guard tased plaintiff Elkington. (Id. ¶ 24.)

Based on Moe, joinder would be improper as to the claims against the individual security guards alone.

However, Plaintiffs do adequately allege a common policy or practice concerning defendants Protective Shield and Mushmel Properties. Plaintiffs allege defendant security guard Landaverde is an employee of Protective Shield and a contracted security guard working for and on behalf of Mushmel, Orchard, and defendant store Doe 1. (Compl. ¶ 9.) Plaintiffs also allege defendant security guard John Doe is an employee of Protective Shield and a contracted security guard working for and on behalf of Mushmel. (Id. ¶ 10.) Both Protective Shield and Mushmel had prior knowledge that neither Landaverde and John Doe have active security guard licenses with the California Bureau of Security and Investigative Services. (Id. ¶ 17.) Moreover, Mushmel knew Protective Shield had a history of employing unlicensed security guards that were cited and fined by the California Bureau of Security, and that John Doe and Landaverde's unfitness and incompetence for their roles created a particular risk of harm to others. (Id. ¶¶ 17, 30-32.) Yet, Mushmel contracted with Protective Shield. The court infers from these

allegations that Mushmel and Protective Shield had a common practice of hiring unfit security guards and assigning the guards to the Premises, where their allegedly wrongful conduct caused harm to Plaintiffs.

Although these allegations are sufficient to demonstrate proper joinder for Mushmel and Protective Shield as the negligence and negligent hiring causes of action, the court finds that Plaintiff's allegations are insufficient to support joinder from the security guards' actions as to Orchard. Plaintiffs allege defendant

Landaverde was a Protective Shield employee and was contracted to work on behalf of Mushmel and Orchard. (Compl. ¶

9.) But Plaintiffs fail to allege facts

demonstrating Orchard's knowledge of the Landverde's unfitness and Protective Shield's hiring of unfit security guards.

Nor do Plaintiffs allege that Orchard contracted with Protective Shield directly for the security services.

Moreover, Plaintiffs allege that plaintiff Gallegos was not harmed by Landaverde until after she exited Orchard's store and was attempting to leave the Premises. Although Orchard is

located on the Premises and the conduct occurred on the Premises, Plaintiffs do not adequately allege a transactional nexus between Orchard, Protective Shield, and Landaverde's conduct or that Orchard participated in any common policy or practice with Mushmel and Protective Shield.

Therefore, the court sustains the demurrer in part as to the Second Cause of Action with leave to amend.

The court overrules the demurrer as to the First and Third Causes of Action. This ruling applies to defendant Orchard's Neighborhood Market, Inc.

CONCLUSION and ORDER

Demurrer sustained in part as to the Second Cause of Action with leave to amend. Demurrer is overruled as to the First and Third Causes of Action. This ruling applies to defendant Orchard's Neighborhood Market, Inc.

Plaintiffs may file and serve an amended complaint within 30 days of this order.

Defendant Orchard's Neighborhood Market, Inc. to give notice.